

Chapter 5

Products of animal origin, not elsewhere specified or included

Notes.

1.- This Chapter does not cover :

- (a) Edible products (other than guts, bladders and stomachs of animals, whole and pieces thereof, and animal blood, liquid or dried);
 - (b) Hides or skins (including furskins) other than goods of heading 05.05 and parings and similar waste of raw hides or skins of heading 05.11 (Chapter 41 or 43);
 - (c) Animal textile materials, other than horsehair and horsehair waste (Section XI); or
 - (d) Prepared knots or tufts for broom or brush making (heading 96.03).
- 2.- For the purposes of heading 05.01, the sorting of hair by length (provided the root ends and tip ends respectively are not arranged together) shall be deemed not to constitute working.
- 3.- Throughout the Nomenclature, elephant, hippopotamus, walrus, narwhal and wild boar tusks, rhinoceros horns and the teeth of all animals are regarded as "ivory".
- 4.- Throughout the Nomenclature, the expression "horsehair" means hair of the manes or tails of equine or bovine animals.

GENERAL

This Chapter covers a variety of materials of animal origin, unworked or having undergone a simple process of preparation, which are not normally used as food (except certain blood, guts, bladders and stomachs of animals) and which are not dealt with in other Chapters of the Nomenclature.

The following are excluded from this Chapter :

- (a) Animal fats (Chapter 2 or 15).
- (b) Uncooked edible skins of animals (Chapter 2) or of fish (Chapter 3). (When cooked, such skins are classified in Chapter 16.)
- (c) Edible fish fins, heads, tails, maws and other edible fish offal (Chapter 3).
- (d) Organo-therapeutic glands or other organs, dried, whether or not powdered (Chapter 30).
- (e) Fertilisers of animal origin (Chapter 31).
- (f) Raw hides and skins (except birdskins and parts of birdskins, with their feathers or down, unworked, cleaned, disinfected or treated for preservation, but not otherwise worked) (Chapter 41).
- (g) Furskins (Chapter 43).
- (h) Silk and wool and other textile raw materials of animal origin (except horsehair and horsehair waste) (Section XI).
- (ij) Natural or cultured pearls (Chapter 71).

05.01

05.01 - Human hair, unworked, whether or not washed or scoured; waste of human hair.

This heading covers human hair, unworked, whether or not washed or scoured, including hair laid parallel but not arranged so that the root ends and tip ends are respectively together, and waste human hair.

Human hair (other than waste) which has been processed beyond simple washing or scouring, e.g., thinned, dyed, bleached, curled or prepared for the manufacture of postiches, wigs, etc., and also human hair which has been arranged so that the root ends and tip ends are respectively together, is **excluded** (heading 67.03, see corresponding Explanatory Note). This exclusion does not apply to waste human hair, which is always classified in this heading, even if it results from, for example, bleached or dyed hair.

The heading also **excludes** :

- (a) Straining cloth made from human hair (heading 59.11).
- (b) Hair-nets made of human hair (heading 65.05).
- (c) Other articles made of human hair (heading 67.04).

05.02 - Pigs', hogs' or boars' bristles and hair; badger hair and other brush making hair; waste of such bristles or hair.

0502.10 - Pigs', hogs' or boars' bristles and hair and waste thereof

0502.90 - Other

These goods may be in bulk, in loose bundles, or in tied bunches in which the bristles or hairs are laid parallel and the root ends more or less levelled. They may be raw or they may have been cleaned, bleached, dyed or sterilised.

Other brush making hair includes that of the skunk, squirrel and marten.

The heading excludes, however, bristles or hairs when in the form of prepared knots or tufts (i.e., made up into unmounted bundles ready for incorporation without division in brooms or brushes or requiring only certain minor processes to be ready for such incorporation); these fall in heading 96.03 (see Note 3 to Chapter 96).

05.04 - Guts, bladders and stomachs of animals (other than fish), whole and pieces thereof, fresh, chilled, frozen, salted, in brine, dried or smoked.

This heading covers guts, bladders and stomachs of animals (other than those of fish, which fall in heading 05.11), whether whole or in pieces, and whether or not edible, fresh, chilled, frozen, salted, in brine, dried or smoked. If otherwise prepared or preserved such products are excluded (generally Chapter 16).

This heading includes :

- (1) Rennet bags (calf, kid, etc.), whether or not cut or dried; these are used for the extraction of rennet.
- (2) Tripe and paunches. (When cooked, they are classified in Chapter 16.)
- (3) Unworked goldbeater's skin, which is the outer envelope of the caecum of the ox or sheep.

The heading also covers guts and goldbeater's skin (of the ox, in particular) which have been split or cut lengthwise into strips, whether or not the inner coats have been removed by scraping.

Guts are mainly used as sausage casings. They are also used for the manufacture of sterile surgical catgut (heading 30.06), tennis racket strings (heading 42.06) or musical instrument strings (heading 92.09).

The heading also excludes "artificial guts" made by extrusion of a paste of hide or skin fibres, subsequently hardened with a solution of formaldehyde and phenols (heading 39.17) and "artificial" guts made by glueing together split natural guts (heading 42.06).

05.05

05.05 - Skins and other parts of birds, with their feathers or down, feathers and parts of feathers (whether or not with trimmed edges) and down, not further worked than cleaned, disinfected or treated for preservation; powder and waste of feathers or parts of feathers (+).

0505.10 - Feathers of a kind used for stuffing; down

0505.90 - Other

This heading covers :

- (1) Skins and other parts of birds (e.g., heads, wings) with their feathers or down, and
- (2) Feathers and parts of feathers (whether or not with trimmed edges), and down,

provided they are either unworked, or merely cleaned, disinfected or treated for preservation, but not otherwise worked or mounted.

The heading also covers powder, meal and waste of feathers or parts of feathers.

The goods of this heading are of a kind intended for use as bed feathers, for ornamental purposes (usually after further preparation) or for other purposes. For classification purposes, no distinction is made between the different kinds of feathers.

The parts of feathers of this heading include feathers split along their length, barbs cut from the scape or attached to a thin shaving of the scape (whether or not with trimmed edges), quills and scapes.

Feathers and down packed for retail sale in cloth bags and clearly of a kind not constituting cushions or pillows are classified in this heading. Feathers simply strung together for convenience of transport also remain classified in this heading.

The heading **excludes** skins and other parts of birds, feathers and parts of feathers which have undergone working other than that permitted in this heading (e.g., bleaching, dyeing, curling or waving), or which have been mounted, and articles of feathers, etc.; these are generally classified in heading 67.01 (see the Explanatory Note thereto). Worked quills, and articles made from quills, however, are classified according to their character (e.g. : angling floats - heading 95.07, toothpicks heading 96.01).

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Subheading Explanatory Note.

Subheading 0505.10

"Feathers of a kind used for stuffing" means feathers of poultry (in particular goose or duck), of pigeon, of partridge or the like, other than large wing or tail feathers and large feathers rejected on grading. "Down" is the finest and softest part of the plumage of goose or duck in particular and differs from feathers in not having rigid scapes. Such feathers and down are mainly used for stuffing articles of bedding or other articles such as cushions and insulating clothing (for example, anoraks).

05.06 - Bones and horn-cores, unworked, defatted, simply prepared (but not cut to shape), treated with acid or degelatinised; powder and waste of these products.

0506.10 - Ossein and bones treated with acid

0506.90 - Other

The products of this heading are used mainly as carving materials, for the manufacture of glue and gelatin or as fertilisers.

The heading covers :

- (1) **Bones and horn-cores** (inner bones of horns), unworked or defatted (bones from which the fat has been removed by various processes).
- (2) **Bones, simply prepared (but not cut to shape)**, i.e., not having undergone processes extending beyond simple sawing for the removal of superfluous parts, cutting (crosswise or lengthwise), sometimes followed by rough planing or bleaching. The heading therefore **excludes** rectangular (including square) plates and sheets and other shapes, whether or not polished or otherwise worked, and products obtained by moulding powdered bone; all these goods fall in **heading 96.01** or in other more specific headings.
- (3) **Bones treated with acid**, i.e., bones, the calcareous part of which has been dissolved by means of hydrochloric acid, and which, without having lost their original form, retain only their cellular tissue and cartilaginous parts (ossein) which can be easily transformed into gelatin.
- (4) **Degelatinised bones** from which the gelatin has been removed by steaming and which are usually in the form of powder (steam bone flour).
- (5) **Powder and waste of bones** (including crushed bones), e.g., that produced by working the bone.

05.07

05.07 - Ivory, tortoise-shell, whalebone and whalebone hair, horns, antlers, hooves, nails, claws and beaks, unworked or simply prepared but not cut to shape; powder and waste of these products.

0507.10 - Ivory; ivory powder and waste

0507.90 - Other

This heading covers the products described below, unworked or simply prepared but not cut to shape, i.e., not having undergone processes extending beyond rasping, scraping, cleaning, removal of superfluous parts, trimming, splitting, cutting other than to shape, rough planing, straightening or flattening :

(A) Ivory.

Throughout the Nomenclature, the term "ivory" is regarded as covering the bony substance which constitutes :

- (1) The tusks of the elephant, hippopotamus, walrus, narwhal or wild boar.
- (2) The horns of the rhinoceros.
- (3) The teeth of any land or marine animal.

(B) Tortoise-shell.

The tortoise-shell of commerce is normally turtle shell (generally obtained from the species known as Kemp's Turtles, Loggerheads and Hawksbill Turtles), and references to tortoise-shell include turtle shell.

Tortoise-shell is a horny material in the form of plates (scales), of varying size and thickness, protecting the horny frame-work which encloses the body of the animal.

In this heading "tortoise-shell" means :

- (1) **Shells**, whole or in part.
- (2) **Scales** from these shells, almost always detached at the fishing ground, and consisting of plates of uneven thickness, with a curved surface. These scales are described as **dorsal** or **ventral** according to the part of the body from which they are obtained; the part which covers the stomach and breast is known as the **plastron**.

(C) Whalebone and whalebone hair.

In its natural state, **whalebone** (of whales or other marine mammals) takes the form of curved, horny blades with a greyish skin adhering to the surface and with a kind of fringe of the same material as the whalebone (**whalebone hair**) on the inner edge.

(D) Horns, antlers, hooves, nails, claws and beaks.

The **horns** of this group may be presented with or without their cores and their frontal bones. **Antlers** are branched horns of deer, elk, etc.

The heading also covers powder and waste (including parings) of these products.

The heading excludes products which have been cut to rectangular (including square) shapes or into rods, tubes or other semi-finished forms and products obtained by moulding (heading 96.01 or other more specific headings).

05.08

05.08 - Coral and similar materials, unworked or simply prepared but not otherwise worked; shells of molluscs, crustaceans or echinoderms and cuttle-bone, unworked or simply prepared but not cut to shape, powder and waste thereof.

Coral is the calcareous skeleton of a marine polyp and is generally used for articles of jewellery.

The most important shell for industrial purposes is that used as mother of pearl.

The heading covers :

- (1) **Coral, unworked**, or from which only the outer crust has been removed.
- (2) **Coral, simply prepared** but not otherwise worked, i.e., coral not having undergone processes extending beyond simple cutting.
- (3) **Shells, unworked or simply prepared** but not cut to shape, i.e., shells not having undergone processes extending beyond cleaning or simple cutting.

The heading includes cuttle-fish bone, crushed or powdered shells used as animal foodstuffs, and waste of shells.

The heading **excludes** rods, rectangular (including square) plates and other shapes, whether or not polished or otherwise worked; these fall in **heading 96.01** or in other more specific headings.

[05.09] *Die Kunst der Kunst* von Hans-Joachim Lauth, 1997, 128 S., 12,90 €

05.10

05.10 - Ambergris, castoreum, civet and musk; cantharides; bile, whether or not dried; glands and other animal products used in the preparation of pharmaceutical products, fresh, chilled, frozen or otherwise provisionally preserved.

Ambergris is a substance secreted by the sperm-whale and is found in the form of rounded masses made up of concentric layers and weighing up to a hundred kilograms. It has a waxy consistency and gives a sweet odour when rubbed. It varies from ash grey to black in colour and its density is less than that of water. Ambergris should not be confused with yellow amber (succinite) which is a mineral resin and falls in **heading 25.30**.

Castoreum is a resinous substance, brown, reddish or yellowish, with a bitter flavour and a pungent smell. It is secreted by beavers and is usually presented in the pouches (generally joined at their ends) in which it is formed. These pouches are often pleated and range in length from 5 to 10 cm.

Civet is produced by the civet cat and is a golden brown or brown resinous substance of pasty and oily consistency, with a very strong odour which closely resembles natural musk.

Musk, secreted by a kind of deer, is normally enclosed in pouches (flat and hairless on one side and convex and covered with whitish hair on the other) in which it is formed. The secretion is dark brown and has a strong smell. The musk in question should not be confused with artificial musk (musk xylene, musk ambrette, etc.) included in **Chapter 29**.

Cantharides are beetles used primarily for their vesicant or counter-irritant properties. They are usually presented in dried or powdered form.

The heading also includes :

- (1) **Animal glands and other animal organs** used in the preparation of organo-therapeutic products and unfit, by reason of their nature or of the manner in which they are put up, for human consumption (pancreas, testes, ovaries, gall bags, thyroid glands, pituitary glands, etc.), fresh, chilled or frozen, or otherwise provisionally preserved for the purposes of transport or storage (e.g., in glycerol, acetone or alcohol). When dried or in the form of extract, these products are **excluded (heading 30.01)**. (See however Note 1 (a) to this Chapter as regards edible products.)
- (2) **Bile**, whether or not dried. (Bile extract is **excluded - heading 30.01**).

The heading also **excludes** snake or bee venom put up in dried flakes in sealed ampoules (**heading 30.01**).

05.11 - Animal products not elsewhere specified or included; dead animals of Chapter 1 or 3, unfit for human consumption.

0511.10 - Bovine semen

- Other :

0511.91 -- Products of fish or crustaceans, molluscs or other aquatic invertebrates; dead animals of Chapter 3

0511.99 -- Other

This heading includes :

- (1) **Animal semen.**
- (2) **Animal embryos**, which are shipped frozen with the intended purpose of transplanting them into a recipient mother.
- (3) **Animal blood**, liquid or dried, edible or not.

The heading **excludes** animal blood prepared for therapeutic, prophylactic or diagnostic uses (**heading 30.02**).

- (4) **Cochineal and similar insects.** The cochineal is an insect which lives on certain cactus plants. There are three kinds of cochineal on the market - black, grey or silver, and reddish. The cochineal furnishes a red dye (cochineal extract) (**heading 32.03**) which is used in the preparation of carmine lake (**heading 32.05**).

Amongst the insects similar to the cochineal the most important is the animal kermes, which lives on a variety of dwarf oak tree. Kermes is used for the preparation of vivid and lasting red dyes which are classified in **heading 32.03**.

Animal kermes should not be confused with "kermes mineral" (**heading 38.24**).

Cochineal and kermes are presented dried and may be whole or powdered.

- (5) **Inedible fish eggs and roes.**

These comprise :

- (i) Fertile eggs for hatching, recognisable by the presence of black spots which are the embryonic eyes.
- (ii) Salted roes (e.g., of cod or mackerel) used as fishing bait. These can be distinguished from caviar substitutes (**heading 16.04**) by their strong disagreeable odour and because they are usually packed in bulk.

The heading **excludes** edible roes (**Chapter 3**).

- (6) **Waste of fish or crustaceans, molluscs or other aquatic invertebrates.**

This category covers, *inter alia* :

- (i) Scales of whitebait or of similar fish, fresh or preserved (but not in solution); these are used for the preparation of pearl essence for the coating of imitation pearls.

05.11

(ii) Fish bladders, raw, dried or salted, used in the manufacture of isinglass and fish glues.

(iii) Fish guts and waste of skins used for glue manufacture, etc.

(iv) Fish waste.

The heading also excludes :

(a) Edible fish livers, fish fins, heads, tails, maws and other edible fish offal (Chapter 3).

(b) Shells of molluscs, crustaceans or echinoderms of heading 05.08.

(c) Inedible fish livers used in the preparation of pharmaceutical products (heading 05.10).

(7) **Silkworm eggs.** These have the appearance of small seeds, pale yellow turning gradually to ash grey or earthy yellow. They are usually presented in boxes (or cellular combs) or in cloth sachets.

(8) **Ant eggs.**

(9) **Sinews and tendons** used, like the waste cited in Items (10) and (11) below, mainly as raw materials for the manufacture of glue.

(10) **Parings and similar waste, of raw hides or skins.**

(11) **Waste of raw furskins**, clearly not capable of use by furriers.

(12) **Dead animals** of Chapter 1 or 3 and their meat or meat offals unfit for human consumption other than products of heading 02.09 or of one of the preceding headings of this Chapter.

(13) **Horsehair and horsehair waste**, whether or not put up as a layer with or without supporting material. This category covers hair of the manes or tails of equine or bovine animals. It includes not only unworked horsehair but also horsehair which has been washed, scoured, bleached, dyed, curled or otherwise prepared. The goods may be in bulk, in bunches or may be put up in skeins, etc.

This heading also covers a layer of horsehair on a support of textile fabric, paper, etc., or put up between sheets of textile fabric, paper, etc., by stapling or simple sewing.

The heading excludes horsehair which has undergone a spinning process and horsehair knotted end to end (Chapter 51).

(14) **Natural sponges of animal origin.** They comprise both raw sponges (including those merely washed) and sponges which have been prepared (e.g., by removal of calcareous matter or by bleaching). This category also covers waste sponge.

Loofah, also known as vegetable sponge, is classified in heading 14.04.

The heading further excludes :

(a) Shellac, seed lac, stick lac and other lacs (heading 13.01).

(b) Animal fats of Chapter 15.

(c) Collections and collectors' pieces of zoological interest, consisting of stuffed or otherwise preserved animals, butterflies and other insects, eggs, etc. (heading 97.05).

Section II**VEGETABLE PRODUCTS****Note.**

- 1.- In this Section the term " pellets " means products which have been agglomerated either directly by compression or by the addition of a binder in a proportion not exceeding 3 % by weight.

Chapter 6

Live trees and other plants; bulbs, roots and the like; cut flowers and ornamental foliage

Notes.

- 1.- Subject to the second part of heading 06.01, this Chapter covers only live trees and goods (including seedling vegetables) of a kind commonly supplied by nursery gardeners or florists for planting or for ornamental use; nevertheless it does not include potatoes, onions, shallots, garlic or other products of Chapter 7.
- 2.- Any reference in heading 06.03 or 06.04 to goods of any kind shall be construed as including a reference to bouquets, floral baskets, wreaths and similar articles made wholly or partly of goods of that kind, account not being taken of accessories of other materials. However, these headings do not include collages or similar decorative plaques of heading 97.01.

GENERAL

This Chapter covers all living plants, of a kind supplied by nursery gardeners (including horticulturists) or florists, which are in a condition suitable for planting or ornamental purposes and also chicory plants and roots, **other than roots of heading 12.12**, even if they are not commonly supplied by nursery gardeners or florists. These range from trees, shrubs and bushes to seedling vegetables including, *inter alia*, plants for medicinal purposes. The Chapter **does not include** seeds and fruit, or certain tubers and bulbs (potatoes, onions, shallots and garlic) for which it is not possible to make a distinction between the kinds used as food and those for planting.

The Chapter also covers :

- (1) Cut flowers and flower buds, foliage, branches and other parts of plants, fresh, dried, dyed, bleached, impregnated or otherwise prepared for ornamental purposes.
- (2) Bouquets, wreaths, floral baskets and similar florists' wares.

06.01

06.01 - Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, dormant, in growth or in flower; chicory plants and roots other than roots of heading 12.12.

0601.10 - Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, dormant

0601.20 - Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, in growth or in flower; chicory plants and roots

This heading includes bulbs, etc., whether or not presented in pots, boxes, etc., of, *inter alia*, plants of the following kinds :

Amaryllis, anemone (bulbous species), begonia, canna, chionodoxa, convallaria (lily of the valley), crocus, cyclamen, dahlia, eremurus, freesia, fritillaria, galanthus (snow-drop), gladiolus, gloxinia, hyacinthus, iris, liliun, montbretia, narcissus, ornithogalum, oxalis, polianthes (tuberose), ranunculus, richardia, tigridia and tulipa.

The heading also includes bulbs, etc., of plants not used for ornamental purposes (e.g., rhubarb crowns) and asparagus crowns.

The heading **excludes**, however, certain bulbs, tubers, tuberous roots, corms, crowns and rhizomes (e.g., onions, shallots, garlic, potatoes, Jerusalem artichokes) of Chapter 7, and ginger rhizomes (heading 09.10).

Chicory plants and roots are also covered by this heading. However, unroasted chicory roots, of the variety *Cichorium intybus sativum*, are **excluded** (heading 12.12).

06.02 - Other live plants (including their roots), cuttings and slips; mushroom spawn (+).

0602.10 - Unrooted cuttings and slips

0602.20 - Trees, shrubs and bushes, grafted or not, of kinds which bear edible fruit or nuts

0602.30 - Rhododendrons and azaleas, grafted or not

0602.40 - Roses, grafted or not

0602.90 - Other

This heading includes :

- (1) Trees, shrubs and bushes of all kinds (forest, fruit, ornamental, etc.), including stocks for grafting.
- (2) Plants and seedlings of all kinds for planting, except those of heading 06.01.
- (3) Live roots of plants.
- (4) Unrooted cuttings; slips (grafts or scions); runners and shoots.
- (5) Mushroom spawn consisting of mushroom plant threads (mycelium) whether or not mixed with soil or vegetable matter.

The trees, shrubs, bushes and other plants covered by this heading may be presented with their roots bare or balled, or planted in pots, tubs, boxes or the like.

The heading excludes tuberous roots (e.g., dahlias, heading 06.01) and chicory roots of heading 06.01 or 12.12.

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Subheading Explanatory Notes.**Subheading 0602.20**

For the purposes of subheading 0602.20, the term "trees, shrubs and bushes" includes canes and vines having woody stems (e.g., grape, boysenberry, dewberry, kiwifruit) and rooted cuttings thereof.

This subheading does not cover wild roses (subheading 0602.40).

Subheadings 0602.20, 0602.30, 0602.40 and 0602.90

Live roots are to be classified along with plants in their appropriate subheadings.

06.03

06.03 - Cut flowers and flower buds of a kind suitable for bouquets or for ornamental purposes, fresh, dried, dyed, bleached, impregnated or otherwise prepared.

- Fresh

0603.11 -- Roses

0603.12 -- Carnations

0603.13 -- Orchids

0603.14 -- Chrysanthemums

0603.15 -- Lilies (*Lilium spp.*)

0603.19 -- Other

0603.90 - Other

The heading covers not only cut flowers and buds as such, but also bouquets, wreaths, floral baskets and similar articles (e.g., posies and buttonholes) incorporating flowers or flower buds. Provided that such bouquets, etc., have the essential character of florists' wares, they remain in the heading even if they contain accessories of other materials (ribbons, paper trimmings, etc.).

Cut branches of trees, shrubs or bushes, if bearing flowers or flower buds (e.g., magnolia and certain types of roses), are treated as cut flowers or flower buds of this heading.

The heading **excludes** flowers, petals and buds of a kind used primarily in perfumery, in pharmacy, or for insecticidal, fungicidal or similar purposes, provided that, in the condition in which they are presented, they are not suitable for bouquets or for ornamental use (**heading 12.11**). The heading also **excludes** collages and similar decorative plaques of **heading 97.01**.

06.04 - Foliage, branches and other parts of plants, without flowers or flower buds, and grasses, mosses and lichens, being goods of a kind suitable for bouquets or for ornamental purposes, fresh, dried, dyed, bleached, impregnated or otherwise prepared.

0604.20 - - Fresh

0604.90 - - Other

This heading covers not only foliage, branches, etc., as such, but also bouquets, wreaths, floral baskets and similar articles incorporating foliage or parts of trees, shrubs, bushes or other plants, or incorporating grasses, mosses or lichens. Provided that such bouquets, etc., have the essential character of florists' wares, they remain in the heading even if they contain accessories of other materials (ribbons, wire frames, etc.).

Goods of this heading may bear decorative fruits, but if they incorporate flowers or flower buds they are excluded (heading 06.03).

The heading covers natural Christmas trees, provided that they are clearly unfit for replanting (e.g., root sawn off, root killed by immersion in boiling water).

The heading also excludes plants and parts of plants (including grasses, mosses and lichens) of a kind used primarily in perfumery, in pharmacy or for insecticidal, fungicidal or similar purposes (heading 12.11) or for plaiting (heading 14.01), provided that, in the condition in which they are presented, they are not suitable for bouquets or for ornamental purposes. The heading also excludes collages and similar decorative plaques of heading 97.01.
